

Opinion of the Court

Act, the Forest Service entered into “right-of-way” agreements with the National Park Service “for [the] approximately 780 miles of Appalachian Trail route within national forests,” including the George Washington National Forest. 36 Fed. Reg. 2676 (1971); see also 16 U. S. C. § 1246(a)(2); 36 Fed. Reg. 19805.² These “right-of-way” agreements did not convert “Federal lands” into “lands” within the “National Park System.”

1

A right-of-way is a type of easement. In 1968, as now, principles of property law defined a right-of-way easement as granting a nonowner a limited privilege to “use the lands of another.” *Kelly v. Rainelle Coal Co.*, 135 W. Va. 594, 604, 64 S. E. 2d 606, 613 (1951); *Builders Supplies Co. of Goldsboro, N. C., Inc. v. Gainey*, 282 N. C. 261, 266, 192 S. E. 2d 449, 453 (1972); see also R. Powell & P. Rohan, *Real Property* § 405 (1968); *Restatement (First) of Property* § 450 (1944). Specifically, a right-of-way grants the limited “right to pass . . . through the estate of another.” *Black’s Law Dictionary* 1489 (4th ed. 1968). Courts at the time of the Trails Act’s enactment acknowledged that easements grant only nonpossessory rights of use limited to the purposes specified in the easement agreement. See, e. g., *Bunn v. Offutt*, 216 Va. 681, 684, 222 S. E. 2d 522, 525 (1976). And because an easement does not dispossess the original owner, *Barnard v. Gaumer*, 146 Colo. 409, 412, 361 P. 2d 778, 780 (1961), “a possessor and an easement holder can simultaneously utilize the same parcel of land,” J. Bruce & J. Ely, *Law of Easements and Licenses in Land* § 1:1, p. 1–5 (2015). Thus, it was, and is, elementary that the grantor of the easement retains ownership over “*the land itself*.” *Minneapolis Athletic Club v. Cohler*, 287 Minn. 254, 257, 177 N. W. 2d 786, 789 (1970) (emphasis added). Stated more plainly, easements are not land,

²The specifics of the agreement between the two agencies is not in the record before us.

they merely burden land that continues to be owned by another. See Bruce, *Law of Easements and Licenses in Land* § 1:1, at 1–2.

If analyzed as a right-of-way between two private landowners, determining whether any land had been transferred would be simple. If a rancher granted a neighbor an easement across his land for a horse trail, no one would think that the rancher had conveyed ownership over that land. Nor would anyone think that the rancher had ceded his own right to use his land in other ways, including by running a water line underneath the trail that connects to his house. He could, however, make the easement grantee responsible for administering the easement apart from the land. Likewise, when a company obtains a right-of-way to lay a segment of pipeline through a private owner's land, no one would think that the company had obtained ownership over the land through which the pipeline passes.

Although the Federal Government owns all lands involved here, the same general principles apply. We must ascertain whether one federal agency has transferred jurisdiction over lands—meaning “jurisdiction to exercise the incidents of ownership”—to another federal agency. Brief for Petitioner Atlantic Coast Pipeline, LLC, 22–23, n. 2. The Trails Act refers to the granted interests as “rights-of-way,” both when describing agreements with the Federal Government and with private and state property owners. 16 U.S.C. §§ 1246(a)(2), (e). When applied to a private or state property owner, “right-of-way” would carry its ordinary meaning of a limited right to enjoy another's land. Nothing in the statute suggests that the term adopts a more expansive meaning when the right is granted to a federal agency, and we do “not lightly assume that Congress silently attaches different meanings to the same term in the same . . . statut[e],” *Azar v. Allina Health Services*, 587 U.S. 566, 574 (2019). Accordingly, as would be the case with private or

Opinion of the Court

state property owners, a right-of-way between two agencies grants only an easement across the land, not jurisdiction over the land itself.³

The dissent notes that the Federal Government has referred to the Trail as an “area” and a “unit” and has described the Trail in terms of “acres.” See *post*, at 630–633, 635–636 (opinion of SOTOMAYOR, J.). In the dissent’s view, this indicates that the Trail and the land are the same. This is not so. Like other right-of-way easements, the Trail burdens “a particular parcel of land.” Bruce, *Law of Easements and Licenses in Land* § 1:1, at 1–6. It is thus not surprising that the Government might refer to the Trail as an “area,” much as one might mark out on his property the “area” of land burdened by a sewage easement. The fact remains that the land and the easement are still separate.

The dissent also cites provisions of the Trails Act that discuss “lands” to be included in the Trail. See *post*, at 634–635. But this, too, is consistent with our conclusion that the Trail is an easement. Like all easements, the parcel of land burdened by the easement has particular metes and bounds. See, e. g., *Carnemella v. Sadowy*, 147 App. Div. 2d 874, 876, 538 N. Y. S. 2d 96, 98 (1989) (“[T]he subject easement . . . reasonably described the portion of the property where the easement existed”); *Sorrell v. Tennessee Gas Transmission Co.*, 314 S. W. 2d 193, 195–196 (Ky. 1958). In fact, without such descriptions, parties to an easement agreement would be unable to understand their rights or enforce another par-

³It is of no moment that the Trails Act also permits the agency responsible for the Trail to grant “rights-of-way upon, over, under, across, or along any component of the national trails system.” 16 U. S. C. § 1248(a). See *post*, at 635 (SOTOMAYOR, J., dissenting). This provision merely extends a positive grant of authority to the agency responsible for the Trail; it does not divest the original agency of that same authority. See J. Bruce & J. Ely, *The Law of Easements and Licenses in Land* § 1:1, p. 1–5 (2015) (noting that “a possessor and an easement holder can simultaneously utilize the same parcel of land”).

Opinion of the Court

ty's obligations under the easement agreement. Thus, there is nothing noteworthy about the fact that the Trails Act discusses whether particular lands should be included within the metes and bounds of the tracts of land burdened by the easement. In short, none of the characterizations identified by the dissent changes the fact that the burden on the land and the land itself remain separate.⁴

In sum, read in light of basic property law principles, the plain language of the Trails Act and the agreement between the two agencies did not divest the Forest Service of jurisdiction over the lands that the Trail crosses. It gave the Department of the Interior (and by delegation the National Park Service) an easement for the specified and limited purpose of establishing and administering a Trail, but the land itself remained under the jurisdiction of the Forest Service. To restate this conclusion in the parlance of the Leasing Act, the lands that the Trail crosses are still "Federal lands," 30 U.S.C. § 185(a), and the Forest Service may grant a pipeline right-of-way through them—just as it granted a right-of-way for the Trail. Sometimes a complicated regulatory scheme may cause us to miss the forest for the trees, but at bottom, these cases boil down to a simple proposition: A trail is a trail, and land is land.

⁴The dissent suggests that we are not engaging in statutory interpretation and that, relatedly, we should not look to state law for our analysis. See *post*, at 631, n. 8, 635, n. 9. Neither criticism is warranted. We are principally concerned with the meaning of the term "right-of-way," which, as the dissent's own authority acknowledges, carries the same meaning whether it appears in federal or state law. In *New Mexico v. United States Trust Co.*, 172 U.S. 171 (1898), for instance, the Court interpreted the term in a federal statute. There, the Court acknowledged that there is a difference between "'an easement in land [and] the land itself'" and that a "right of way . . . constitute[s] no . . . right of possession of the land itself." *Id.*, at 182, 184. We have more recently confirmed that it is appropriate to look to "basic common law principles" when interpreting the terms right-of-way and easement. See *Marvin M. Brandt Revocable Trust v. United States*, 572 U.S. 93, 106 (2014); *id.*, at 105, n. 4.

Opinion of the Court

2

The various duties described in the Trails Act reinforce that the agency responsible for the Trail has a limited role of administering a trail easement, but that the underlying land remains within the jurisdiction of the Forest Service. The Trails Act states that the Secretary of the Interior (and by delegation the National Park Service) shall “administe[r]” the Trail “primarily as a footpath.” 16 U. S. C. § 1244(a)(1). The Secretary is charged with designating Trail uses, providing Trail markers, and establishing interpretative and informational sites “to present information to the public about the [T]rail.” § 1246(c). He also has the authority to pass regulations governing Trail protection and good conduct and can regulate the “protection, management, development, and administration” of the Trail. § 1246(i). Though the Trails Act states that the responsible agency shall “*provide* for” the maintenance of the Trail, § 1246(h)(1) (emphasis added), it is the Forest Service that *performs* the necessary physical work. As the Government explained at oral argument (and as respondents did not dispute), “[i]f a tree falls on forest lands over the trail, it’s the Forest Service that’s responsible for it. You don’t call the nine [National] Park Service employees at Harpers Ferry [in West Virginia] and ask them to come out and fix the tree.” Tr. of Oral Arg. 5. These statutory duties refer to the Trail easement, not the lands over which the easement passes.

The dissent resists this conclusion by asserting that the National Park Service “administers” the Trail, and that so long as that is true, the Trail is land within the National Park System. See *post*, at 637–638. But the National Park Service does not administer the “land” crossed by the Trail. It administers the *Trail* as an easement—an easement that is separate from the underlying land.⁵

⁵The dissent argues that its position is supported by the fact that the terms “administer” and “manage” are “terms of art.” *Post*, at 637. The dissent, however, does not demonstrate that either term carries a “widely

Finally, Congress has used unequivocal and direct language in multiple statutes when it wished to transfer land from one agency to another, just as one would expect if a property owner conveyed land in fee simple to another private property owner. In the Wild and Scenic Rivers Act, for instance, which was enacted the same day as the Trails Act, Congress specified that “[a]ny component of the national wild and scenic rivers system that is administered by the Secretary of the Interior through the National Park Service *shall become a part of the [N]ational [P]ark [S]ystem.*” § 10(c), 82 Stat. 916, codified at 16 U. S. C. § 1281(c) (emphasis added). That statute also explicitly permits the head of an agency “to transfer to the appropriate secretary *jurisdiction over such lands.*” § 6(e), 82 Stat. 912–913, codified at 16 U. S. C. § 1277(e) (emphasis added). Congress has also authorized the Department of the Interior “to transfer to the jurisdiction of the Secretary of Agriculture for national forest purposes *lands or interests in lands* acquired for or in connection with the Blue Ridge Parkway” and specifies that “[l]ands transferred under this Act shall become national forest lands.” Pub. L. 82–336, 66 Stat. 69 (emphasis added). Similar language appears in a host of other statutes. See §§ 5(a)(2), 8(c)(2), 114 Stat. 2529, 2533; Pub. L. 89–446, 80 Stat. 199; § 7(c), 79 Stat. 217; Pub. L. 88–415, 78 Stat. 388. The fact that Congress chose to speak in terms of rights-of-way in the Trails Act, rather than in terms of land transfers, reinforces the conclusion that the Park Service has a limited role over only the Trail, not the lands that the Trail crosses. See *Reves v. Ernst & Young*, 507 U. S. 170, 178–179 (1993).

accepted . . . meaning,” *FCC v. AT&T Inc.*, 562 U. S. 397, 405 (2011) (internal quotation marks omitted), let alone that Congress “borrow[ed] terms of art in which are accumulated the legal tradition and meaning of centuries of practice,” *Carter v. United States*, 530 U. S. 255, 264 (2000) (internal quotation marks omitted; emphasis deleted).

Opinion of the Court

For these reasons, we hold that the Trails Act did not transfer jurisdiction of the lands crossed by the Trail from the Forest Service to the Department of the Interior. It created a trail easement and gave the Department of the Interior the administrative responsibilities concomitant with administering the Trail as a trail. Accordingly, because the Department of the Interior had no jurisdiction over any lands, its delegation to the National Park Service did not convert the Trail into “*lands* in the National Park System,” 30 U.S.C. § 185(b)(1) (emphasis added)—*i. e.*, an “*area of land . . . administered by the Secretary [of the Interior] acting through the Director [of the National Park Service].*” 54 U.S.C. § 100501 (emphasis added). The Forest Service therefore retained the authority to grant Atlantic a pipeline right-of-way.

B

1

Respondents take a markedly different view, which is shared by the dissent. According to respondents, the Trail cannot be separated from the underlying land. In their view, if the National Park Service administers the Trail, then it also administers the lands that the Trail crosses, and no pipeline rights-of-way may be granted.

Respondents’ argument that the National Park Service administers the Trail (and therefore the lands that the Trail crosses) proceeds in four steps. First, the Trails Act granted the Department of the Interior the authority to administer the Trail. 16 U.S.C. § 1244(a)(1). Second, the Department of the Interior delegated those responsibilities to the National Park Service in 1969. 34 Fed. Reg. 14337. Third, in 1970, Congress defined the National Park System to include “any area of land and water administered by the Secretary [of the Interior] acting through the Director [of the National Park Service].” 54 U.S.C. § 100501. Under respondents’ view, the 1970 National Park System definition

made the Trail part of the National Park System. But one more step was still required to place the Trail outside the Forest Service's Leasing Act pipeline authority. That final step occurred in 1973, when the amendment to the Leasing Act carved out lands in the National Park System from the definition of the "Federal lands" through which pipeline rights-of-way could be granted. 30 U. S. C. § 185(b)(1). Because the Trail had become part of the National Park Service in 1970, respondents conclude that the 1973 carveout applied to the Trail. Therefore, in their view, the Forest Service cannot grant pipeline rights-of-way under the parcels on which there is a right-of-way for the Appalachian Trail.

This circuitous path misses the mark. As described above, under the plain language of the Trails Act and basic property principles, responsibility for the Trail and jurisdiction over the lands that the Trail crosses can and must be separated for purposes of determining whether the Forest Service can grant a right-of-way. See *supra*, at 612–616.

2

Even accepting respondents' argument on its own terms, however, we remain unpersuaded. Respondents' entire theory depends on an administrative action about which the statutes at issue are completely silent: the Department of the Interior's voluntary decision to assign responsibility over a given trail to the National Park Service rather than to the Bureau of Land Management. To reiterate, respondents contend that the Department of the Interior's decision to delegate responsibility over a trail to the National Park Service renders that trail an "area of land . . . administered by the Secretary [of the Interior], acting through the [Park Service.]" 54 U. S. C. § 100501. Respondents' theory requires us to accept that, without a word from Congress, the Department of the Interior has the power to vastly expand the scope of the National Park Service's jurisdiction through its delegation choices. See Addendum to Reply Brief for Peti-

Opinion of the Court

tioner Atlantic Coast Pipeline, LLC, 1a–2a. After all, respondents’ view would not just apply to the approximately 2,000-mile-long Appalachian Trail. It would apply equally to all 21 national historic and national scenic trails currently administered by the National Park Service. See Congressional Research Service, National Trails System. Under our precedents, when Congress wishes to “‘alter the fundamental details of a regulatory scheme,’” as respondents contend it did here through delegation, we would expect it to speak with the requisite clarity to place that intent beyond dispute. See *Epic Systems Corp. v. Lewis*, 584 U. S. 497, 515 (2018) (quoting *Whitman v. American Trucking Assns., Inc.*, 531 U. S. 457, 468 (2001)). We will not presume that the act of delegation, rather than clear congressional command, worked this vast expansion of the Park Service’s jurisdiction and significant curtailment of the Forest Service’s express authority to grant pipeline rights-of-way on “lands owned by the United States.” 30 U. S. C. § 185(b).

Respondents’ theory also has striking implications for federalism and private property rights. Respondents do not contest that, in addition to federal lands, these 21 trails cross lands owned by States, local governments, and private landowners. See also *post*, at 643 (acknowledging that the Trail alone “comprises 58,110.94 acres of Non-Federal land, including 8,815.98 acres of Private land” (internal quotation marks omitted)). Under respondents’ view, these privately owned and state-owned lands would also become lands in the National Park System.⁶ Our precedents require Congress to

⁶The dissent contends that this concern is misplaced because, under its view, though the National Park Service will be administering the thousands of miles of land that the 21 trails cross, the Federal Government will not have ownership over it. See *post*, at 641–642. As explained *supra*, at 612–616, this argument suffers from the same flaw—namely, that the Trail easement and the land that the Trail crosses are one and the same. Moreover, under the dissent’s view, the National Park Service would still gain power over numerous tracts of privately owned and state-owned land. The dissent cites no authority to explain why this assertion of “administra-

enact exceedingly clear language if it wishes to significantly alter the balance between federal and state power and the power of the Government over private property. Cf. *Gregory v. Ashcroft*, 501 U. S. 452, 460 (1991).

Finally, reliance on the Department of the Interior’s delegation of its Trails Act authority is especially questionable here, given that Congress has used express language in other statutes when it wished to transfer lands between agencies. See *supra*, at 618. Congress not only failed to enact similar language in the Trails Act, but it clearly expressed the opposite view. The entire Trails Act must be

tive” jurisdiction would not pose many of the same difficulties as outright ownership. For instance, the National Park Service provides for the maintenance of the Trail where it crosses federal lands. 16 U. S. C. § 1246(h)(1). Over half of the States through which the Trail passes have analogous laws for state-owned lands. See, e.g., N. C. Gen. Stat. Ann. § 143B–135.76 (2019); Tenn. Code Ann. §§ 11–11–106, 11–11–117 (2012); Va. Code Ann. § 10.1–203 (2018); Md. Nat. Res. Code Ann. § 5–1001 (2018); 64 Pa. Cons. Stat. § 803(b) (2010); N. J. Stat. Ann. § 13:8–39 (West 2003); Mass. Gen. Laws, ch. 132A, § 12 (2018); Conn. Gen. Stat. §§ 23–69, 23–70 (2017); N. H. Rev. Stat. Ann. § 216–D:2 (2019); Me. Rev. Stat. Ann., Tit. 12, § 1892 (2020 Cum. Supp.). The dissent’s view would allow the Federal Government to displace all such laws. Attempting to downplay the implications of its position, the dissent asserts that the National Park Service already has such jurisdiction under the Trails Act and its implementing regulations. See *post*, at 641, n. 13. This, too, is incorrect. Recognizing the fact that “[National Park Service] lands are intermingled with private, local, [and] state” lands, 67 Fed. Reg. 8479 (2002), the National Park Service has concluded that the regulations governing the Trail pointed to by the dissent “do not apply on non-federally owned lands,” 36 CFR § 1.2(b) (2019); see also 48 Fed. Reg. 30253 (1983); Dept. of Interior, W. Janssen, Appalachian National Scenic Trail, Superintendent’s Compendium of Designations, Closures, Permit Requirements and Other Restrictions Imposed Under Discretionary Authority § 5, p. 3 (2019) (“The rules contained in this Compendium apply to all persons entering, using, visiting or otherwise present on federally owned lands”). Thus, the dissent points to nothing indicating that the National Park Service has ever adopted its novel theory, with its attendant federalism concerns.

Opinion of the Court

read against the backdrop of the Weeks Act, which states that lands acquired for the National Forest System—including the George Washington National Forest—“shall be permanently reserved, held, and administered as national forest lands.” 16 U. S. C. § 521. The Trails Act further provides that “[n]othing contained in this chapter shall be deemed to transfer among Federal agencies any management responsibilities established under any other law for federally administered lands which are components of the National Trails System.” § 1246(a)(1)(A). These two provisions, when combined with the Trails Act’s use of the term “rights-of-way” and the administrative duties set out in the Trails Act, provide much clearer—and more textual—guides to Congress’ intent than an agency’s silent decision to delegate responsibilities to the National Park Service.

In sum, we conclude that the Department of the Interior’s unexplained decision to assign responsibility over certain trails to the National Parks System and the Leasing Act’s definition of federal lands simply cannot bear the weight of respondents’ interpretation.

IV

We hold that the Department of the Interior’s decision to assign responsibility over the Appalachian Trail to the National Park Service did not transform the land over which the Trail passes into land within the National Park System. Accordingly, the Forest Service had the authority to issue the permit here.⁷

⁷Objections that a pipeline segment interferes with rights of use enjoyed by the National Park Service would present a different issue. See *Bruce*, *Law of Easements and Licenses in Land* § 1:1. These cases do not present anything resembling such a scenario. Under the current proposal, the workstations for laying the challenged segment of the pipeline will be located on private land, approximately 1,400 feet and 3,400 feet respectively from the Trail. Atlantic plans to use a method of drilling that will not require the company to clear any land or dig on the Trail’s

For the foregoing reasons, we reverse the judgment of the Court of Appeals and remand the cases for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE SOTOMAYOR, with whom JUSTICE KAGAN joins, dissenting.

The majority's complicated discussion of private-law easements, footpath maintenance, differently worded statutes, and policy masks the simple (and only) dispute here. Is the Appalachian National Scenic Trail "lan[d] in the National Park System"? 30 U. S. C. § 185(b)(1). If it is, then the Forest Service may not grant a natural-gas pipeline right-of-way that crosses the Trail on federally owned land. So says the Mineral Leasing Act, and the parties do not disagree. See Brief for Petitioner Atlantic Coast Pipeline, LLC, 10; Brief for Federal Petitioners 3; Brief for Respondents 1.

By definition, lands in the National Park System include "any area of land" "administered" by the Park Service for "park, monument, historic, parkway, recreational, or other purposes." 54 U. S. C. § 100501. So says the National Park Service Organic Act, and the parties agree. See Brief for Petitioner Atlantic Coast Pipeline, LLC, 38; Brief for Federal Petitioners 45–46; Brief for Respondents 5–6.

The Appalachian Trail, in turn, is "administered" by the Park Service to ensure "outdoor recreation" and to conserve "nationally significant scenic, historic, natural, or cultural qualities." §§ 3(b), 5(a)(1), 82 Stat. 919–920; see also 34 Fed. Reg. 14337 (1969). So say the National Trails System Act and relevant regulations, and again the parties agree. See Brief for Petitioner Atlantic Coast Pipeline, LLC, 6, 8–9; Brief for Federal Petitioners 9, 26; Brief for Respondents 5.

surface. The entry and exit sites will not be visible from the Trail, nor will any detour be required. And, the final pipeline will lie approximately 600 feet below the Trail.

SOTOMAYOR, J., dissenting

Thus, as the Government puts it, the only question here is whether parts of the Appalachian Trail are “‘lands’” within the meaning of those statutes. Brief for Federal Petitioners 3. Those laws, a half century of agency understanding, and common sense confirm that the Trail is land, land on which generations of people have walked. Indeed, for 50 years the “Federal Government has referred to the Trail” as a “‘unit’” of the National Park System. *Ante*, at 615; see Part I–C, *infra*. A “unit” of the Park System is by definition either “land” or “water” in the Park System. 54 U. S. C. §§ 100102(6), 100501. Federal law does not distinguish “land” from the Trail any more than it distinguishes “land” from the many monuments, historic buildings, parkways, and recreational areas that are also units of the Park System. Because the Trail is land in the Park System, “no federal agency” has “authority under the Mineral Leasing Act to grant a pipeline right-of-way across such lands.” Brief for Federal Petitioners 3.

By contrast, today’s Court suggests that the Trail is not “land” in the Park System at all. The Court strives to separate “the *lands* that the Trail traverses” from “the Trail itself,” reasoning that the Trail is simply an “easement,” “not land.” *Ante*, at 612, 613. In doing so, however, the Court relies on anything except the provisions that actually answer the question presented. Because today’s Court condones the placement of a pipeline that subverts the plain text of the statutes governing the Appalachian Trail, I respectfully dissent.

I

Petitioner Atlantic Coast Pipeline, LLC, seeks to construct a natural-gas pipeline across the George Washington National Forest. The proposed route traverses 21 miles of national forests and requires crossing 57 rivers, streams, and lakes within those forests. See 911 F. 3d 150, 155 (CA4 2018) (case below in No. 18–1584); App. in No. 18–1144 (CA4), p. 1659. The plan calls for “clearing trees and other vegeta-

SOTOMAYOR, J., dissenting

tion from a 125-foot right of way (reduced to 75 feet in wetlands) through the national forests, digging a trench to bury the pipeline, and blasting and flattening ridgelines in mountainous terrains.” 911 F. 3d, at 155. Construction noise will affect Appalachian Trail use 24 hours a day. See App. 79–80. Atlantic’s machinery (including the artificial lights required to work all night) will dim the stars visible from the Trail. See *id.*, at 80. As relevant here, at one stretch the pipeline would cross the Trail.¹

A

Three interlocking statutes foreclose this proposal. The Mineral Leasing Act authorizes the Secretary of the Interior “or appropriate agency head” to grant rights-of-way for natural-gas pipelines “through any Federal lands.” 30 U. S. C. § 185(a); see also § 185(q) (governing renewals of pre-existing pipeline rights-of-way “across Federal lands”).² “For the purposes of” § 185, however, “‘Federal lands’” exclude “lands in the National Park System.” § 185(b). Thus, as all acknowledge, if a proposed pipeline would cross any land in the Park System, then no federal agency would have “authority under the Mineral Leasing Act to grant” a “right-of-way across” that land. Brief for Federal Petitioners 3;

¹The Court of Appeals for the Fourth Circuit also found that Atlantic’s proposal may conflict with several environmental laws, including the National Forest Management Act and the National Environmental Policy Act. See 911 F. 3d, at 154–155, 160–179 (remanding for further agency review). Those aspects of the Fourth Circuit’s decision are not before this Court.

²If the “surface” of “all of the Federal lands involved” is “under the jurisdiction of one Federal agency,” then the head of that agency (rather than the Secretary of the Interior) has authority to grant the right-of-way across federal land. 30 U. S. C. § 185(c)(1). If, by contrast, the surface of that land “is administered by the Secretary [of the Interior] or by two or more Federal agencies,” then only the Secretary may grant the right-of-way. § 185(c)(2).

SOTOMAYOR, J., dissenting

see also Brief for Petitioner Atlantic Coast Pipeline, LLC, 10; Brief for Respondents 1.³

Although the Mineral Leasing Act does not define “lands in the National Park System,” the Park Service Organic Act does. Under the Organic Act, the Park System and any “unit” of the Park System “include any area of land and water administered by the Secretary” of the Interior, “acting through the Director” of the Park Service, for “park, monument, historic, parkway, recreational, or other purposes.” 54 U. S. C. §§ 100102, 100501. That definition is sweeping; whether land or water, “any area” so “administered” by the Park Service is in the Park System. § 100501.⁴

In turn, the National Trails System Act of 1968 (Trails Act), 82 Stat. 919, provides that the Appalachian Trail “shall be administered” “by the Secretary of the Interior” to “provide for maximum outdoor recreation potential and for the conservation and enjoyment” of “nationally significant scenic, historic, natural, or cultural qualities.” §§ 3(b), 5(a)(1), *id.*, at 919–920; see also 16 U. S. C. §§ 1242(a)(2), 1244(a)(1). The Trails Act provides that the Secretary of the Interior has authority to “grant easements and rights-of-way,” among other things, “under” the Appalachian Trail’s surface.

³ Although the Mineral Leasing Act’s right-of-way authority excludes lands in the Park System, Congress may enact separate legislation permitting natural-gas pipelines across such lands. See, *e. g.*, § 1(a), 126 Stat. 2441 (providing that “[t]he Secretary of the Interior may issue right-of-way permits” for certain natural-gas pipelines across Glacier National Park). Here, however, Atlantic and the Government have identified no other permitting authority besides the Mineral Leasing Act.

⁴ The legal meaning of “land” when Congress enacted the relevant statutes was “any ground, soil, or earth whatsoever.” Black’s Law Dictionary 1019 (4th ed. 1968). The ordinary meaning of land was much the same. Webster’s New International Dictionary 1388 (2d ed. 1949) (“The solid part of the surface of the earth, as distinguished from water”; “Any ground, soil, or earth whatsoever . . . and everything annexed to it, whether by nature . . . or by man”).

SOTOMAYOR, J., dissenting

§ 9(a), 82 Stat. 925; see also 16 U. S. C. § 1248(a).⁵ In 1969, the Secretary of the Interior assigned all these powers to the Park Service, naming it the Trail's "land administering bureau." 34 Fed. Reg. 14337. Since then, the Federal Government has consistently identified the Trail as a "unit" of, and thus land in, the National Park System. 54 U. S. C. §§ 100102(6), 100501; see also, *e. g.*, *ante*, at 615; Part I–C, *infra*.

By statutory definition, the Appalachian Trail is land in the National Park System, and the Mineral Leasing Act does not permit pipeline rights-of-way across it.

B

Statutory history reinforces that the Appalachian Trail is land in the National Park System. When the Trails Act designated the Appalachian Trail in 1968, then-existing law provided that "all federally owned or controlled lands" administered by the Park Service for certain purposes were within the Park System. § 2(a), 67 Stat. 496. At the time, though, many "lands" owned by the Federal Government were "supervis[ed]" by the Park Service "pursuant to cooperative agreement[s]" but technically "under the administrative jurisdiction" of other federal agencies. § 2(b), *ibid*. The law defined these as "miscellaneous areas" outside of the Park System. *Ibid*.

In 1970, after the Park Service had begun its role as the Trail's land-administering bureau, Congress enacted the General Authorities Act. This Act declared that the Park System had "grown to include superlative natural, historic, and recreation areas in every major region" and Territory of the United States, and that the Act's "purpose" was "to include all such areas in the [Park] System and to clarify the authorities applicable to the system." Pub. L. 91–383, § 1, 84 Stat. 825. To that end, Congress eliminated the "miscel-

⁵It is undisputed that 16 U. S. C. § 1248 does not authorize rights-of-way for natural-gas pipelines. Atlantic therefore does not rely on this provision.

SOTOMAYOR, J., dissenting

laneous areas’” classification, see §2(a), *id.*, at 826, and amended the Park Service Organic Statute to define the National Park System as “‘any area of land and water now or hereafter administered by the Secretary of the Interior through the National Park Service.’” §2(b), *ibid.*; see also 54 U.S.C. §§100102(2), (5), (6), 100501. Of course, the Appalachian Trail was then (and “[t]hereafter”) “‘administered by the Secretary of the Interior through the National Park Service.’” §2(b), 84 Stat. 826.

In 1973, having broadly defined lands in the Park System, Congress amended the Mineral Leasing Act by eliminating authority to grant rights-of-way across those lands. Before then, the Mineral Leasing Act had provided limited permission to grant rights-of-way through “public lands,” §28, 41 Stat. 449, a term of art referring to certain federally owned land that had never been owned by a State or private individual, see *Wallis v. Pan American Petroleum Corp.*, 384 U.S. 63, 65, and n. 2 (1966). The 1973 amendments replaced the Mineral Leasing Act’s reference to “public lands” with “‘all lands owned by the United States’” and carved out “‘lands in the National Park System.’” §101, 87 Stat. 577; see also 30 U.S.C. §185(b). This carveout meant that parties seeking to build natural-gas pipelines across federally owned land in the Park System could not rely on the Mineral Leasing Act. §101, 87 Stat. 577; 30 U.S.C. §185(b).⁶

Put simply, “any area of land and water administered by” the Park Service is a unit of the Park System and must be “regulate[d]” through “means and measures” that “conserve” and “provide for the enjoyment of the scenery, natural and historic objects, and wild life” in ways “as will leave them unimpaired for the enjoyment of future generations.” 54

⁶ Congress reiterated that the Trail is land in the Park System in 1983. It amended the Trails Act to provide that the Secretary of the Interior’s “‘administrative responsibilities’” over the Appalachian Trail would be “‘carr[ie]d out’” by “‘utiliz[ing] authorities related to units of the national park system.’” §207(h), 97 Stat. 47; see also 16 U.S.C. §1246(i).

SOTOMAYOR, J., dissenting

U. S. C. §§ 100101, 100501. By 1970, the Appalachian Trail was no doubt such an area, as Congress knew when it excluded all federally owned land “in the National Park System” from the Mineral Leasing Act in 1973.⁷ Because the proposed pipeline here would cross that park land, Atlantic cannot rely on the Mineral Leasing Act to authorize its proposal.

C

Agency practice confirms this conclusion. For a half century the Park Service has acknowledged that the Appalachian Trail is a unit of (and land in) the Park System. Recall that a year after the Trails Act’s enactment, the Secretary of the Interior named the Park Service the “land administering bureau” for the Appalachian Trail. 34 Fed. Reg. 14337. In 1972, the Park Service identified the Trail as a “recreational are[a]” that it “administered.” National Park Service (NPS), National Parks & Landmarks 88 (capitalization deleted). Similarly, as the administrator of that land, the Park Service issued regulations for the Trail under the umbrella, “Areas of the National Park System.” 36 CFR pt. 7 (1983) (capitalization deleted); see also *id.*, § 7.100; 48 Fed. Reg. 30252 (1983). When it did so, the Park Service explained that “[t]hese regulations will be utilized to fulfill the statutory purposes of units of the National Park System.” 36 CFR § 1.1; 48 Fed. Reg. 30275. All those terms—land, area, administer, recreation, unit of the National Park System—

⁷See § 2(b), 84 Stat. 826 (General Authorities Act); H. R. Rep. No. 91-1265, p. 2 (1970) (“The national park system which we know and cherish today has grown and matured over the years [and] has broadened to include . . . areas primarily significant for their outdoor recreation potential”); *ibid.* (explaining that amendments to the Park Service Organic Act “reference . . . more recent concepts like national recreation areas” as “units of the national park system”); see also § 101, 87 Stat. 576-577 (Mineral Leasing Act); S. Rep. No. 93-207, p. 29 (1973) (explaining that the Mineral Leasing Act “is not intended to grant rights-of-way through the National Park System” and citing the recently revised Park Service Organic Act).

SOTOMAYOR, J., dissenting

trace the Organic Act's definition of land in the Park System. See, *e. g.*, 54 U. S. C. §§ 100102(6), 100501.⁸

More recently, a 2005 Park Service history stated that the Appalachian Trail was “brought into the National Park System” by the Trails Act and that, with the Trail’s “inclusion in the System, the [Park Service] became responsible for its protection and maintenance within federally administered areas.” NPS, *The National Parks: Shaping the System* 77. A 2006 Park Service handbook stated that “[s]everal components of the National Trails System which are administered by the [Park] Service,” including the Appalachian Trail, “have been designated as units of the national park system” and “are therefore managed as national park areas.” NPS, *Management Policies* 2006, § 9.2.2.7, p. 134. A 2016 Park Service index similarly listed the Trail as “a unit of the National Park System.” NPS, *The National Parks: Index 2012–2016*, p. 142 (NPS Index).

Still taking cues from statutory text, the Park Service continues to refer to the Appalachian Trail as land in the Park System. Just last year, the Park Service issued a reference manual describing the Appalachian Trail as a “land protection project” that has “been formally declared [a] uni[t] of the National Park System.” NPS, *National Trails System: Reference Manual* 45, pp. 28, 221 (2019) (NPS, *Reference Manual* 45). The Park Service’s compendium of regulations similarly explains that the General Authorities Act “brought all areas administered by the [Park Service] into one National Park System.” NPS, *Appalachian Trail Superintendent’s Compendium* 2 (2019). Even the Park Service’s recent

⁸The Court acknowledges that “the Government might refer to the Trail” as “‘area’ of land,” but concludes that those references must pertain only to easements as defined by state law. *Ante*, at 615 (analogizing to sewage easements and citing state law). That view strays far from the federal statutes at issue. The simpler conclusion is that when the Government uses terms that define land in the Park System, the Government refers to land in the Park System.

SOTOMAYOR, J., dissenting

budget justification to Congress identified the Appalachian Trail as a “Park Base Uni[t],” a “Park Uni[t],” and a national “par[k].” Dept. of Interior, Budget Justifications and Performance Information—Fiscal Year 2020: National Park Service, at Overview–16, ONPS–89, –105 (Budget Justifications) (capitalization deleted).

The Government has even brought this understanding to bear against private citizens. For example, the Government (including the Park Service and the Forest Service) filed a damages lawsuit against an individual, invoking the Organic Act and asserting that a segment of the Appalachian Trail passing through Forest Service lands was a unit of the National Park System. See Record in *United States v. Reed*, No. 1:05–cv–00010 (WD Va.), Doc. 1, p. 2 (“The United States . . . has established the Appalachian National Scenic Trail . . . as [a] uni[t] of the National Park Service”). In that case, the Government obtained a jury verdict against someone who had caused a fire on a Trail segment that was, as the Government alleged, land in the Park System. See *ibid.*; see also *id.*, Doc. 31 (judgment).

Here, at least before they reached this Court, both the Park Service and Forest Service explained in proceedings below that the Trail is land in the Park System. The Park Service noted that the Appalachian Trail is a “protected corridor (a swath of land averaging about 1,000 feet in width . . .)” that the Park Service “administers.” App. 97. Thus, the Park Service detailed, “the entire Trail corridor” is a “park unit.” *Ibid.* For its part, the Forest Service acknowledged that the Park Service “is the lead federal administrator agency for the entire [Appalachian Trail], regardless of land ownership.” *Id.*, at 126. Again, this statement echoes the Organic Act’s definition of land in the Park System, see 54 U.S.C. § 100501, further reflecting that the Trail is land in the Park System.

The agencies’ common ground does not stop there. The Park Service’s Land Resources Division estimates that the